

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Zachary Herman	Team: Squad #12	CCRB Case #: 201900971	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 02/04/2019 10:00 PM	Location of Incident: In front of 2060 Sedgwick Avenue	Precinct: 46	18 Mo. SOL 8/4/2020	EO SOL 3/21/2021	
Date/Time CV Reported Tue, 02/05/2019 8:40 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 02/05/2019 8:40 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Manolis Kambouris	11618	961850	046 PCT
2. POF Marleny Estevez	22904	962389	046 PCT
3. POM Adam Einhorn	24366	963022	046 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Manolis Kambouris	Abuse: Police Officer Manolis Kambouris stopped § 87(2)(b) § 87(2)(b).	
B.POF Marleny Estevez	Abuse: Police Officer Marleny Estevez stopped § 87(2)(b) § 87(2)(b).	
C.POM Adam Einhorn	Abuse: Police Officer Adam Einhorn stopped § 87(2)(b) § 87(2)(b).	
D.POM Manolis Kambouris	Abuse: Police Officer Manolis Kambouris frisked § 87(2)(b) § 87(2)(b).	
E.POF Marleny Estevez	Abuse: Police Officer Marleny Estevez searched the vehicle in which § 87(2)(b) was an occupant.	
F.POM Adam Einhorn	Abuse: Police Officer Adam Einhorn searched the vehicle in which § 87(2)(b) was an occupant.	

Case Summary

On February 5, 2019, § 87(2)(b) called the CCRB and filed this complaint over the phone.

On February 4, 2019, at approximately 10:00 p.m., § 87(2)(b) was inside of his vehicle, which was parked in front of 2060 Sedgwick Avenue in the Bronx. Three police officers, PO Manolis Kambouris, PO Marleny Estevez, and PO Adam Einhorn, all of the 46th Precinct, exited the police vehicle and approached § 87(2)(b)'s vehicle (**Allegations A-C, Abuse of Authority, § 87(2)(g)**). PO Kambouris frisked § 87(2)(b) when he exited the vehicle (**Allegation D, Abuse of Authority, § 87(2)(g)**). PO Estevez searched § 87(2)(b)'s vehicle (**Allegation E, Abuse of Authority, § 87(2)(g)**). PO Einhorn conducted a search of the vehicle. PO Einhorn recovered a push-button switchblade knife and marijuana (**Allegation F, Abuse of Authority, § 87(2)(g)**).

PO Kambouris wrote § 87(2)(b) two summonses, § 87(2)(b). The officers then left.

Body-worn camera footage from PO Kambouris, PO Estevez, and PO Einhorn was recovered in the course of the investigation (BR02-BR04).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Manolis Kambouris stopped § 87(2)(b) § 87(2)(b).

Allegation (B) Abuse of Authority: Police Officer Marleny Estevez stopped § 87(2)(b) § 87(2)(b).

Allegation (C) Abuse of Authority: Police Officer Adam Einhorn stopped § 87(2)(b) § 87(2)(b).

§ 87(2)(b) testified that he was sitting inside of his parked vehicle waiting for a car service. He stated he possessed a rolled marijuana cigarette, but it was in a closed backpack in the back seat. He further stated his vehicle did not smell like marijuana. He observed a marked police SUV driving southbound on Sedgwick Avenue, his vehicle was facing north. § 87(2)(b)'s windows were up, and he stated his vehicle's windows were tinted, although he did not specify which windows. § 87(2)(b) observed the police vehicle shine a spotlight on his license plate, pull a U-turn, and stop near his vehicle. Once the police vehicle stopped, § 87(2)(b) rolled down his window. PO Kambouris approached § 87(2)(b)'s window and asked him what he was doing in the car. § 87(2)(b) responded he was waiting for Uber car service so he could go home. As § 87(2)(b) spoke with PO Kambouris, PO Einhorn stated that he saw a knife, and after a brief exchange, PO Kambouris instructed § 87(2)(b) to get out of the vehicle, which he did (BR01).

PO Kambouris testified that prior to going out on patrol on February 4, 2019, he learned at a CompStat meeting that there were increasing reports of car thefts occurring in the area the stop occurred, although he does not have any information in his memo book indicating this information. He was on patrol, driving on Sedgwick Avenue in the Bronx, when he observed through the windshield of a vehicle, with his headlights, an individual leaning down in the vehicle. The individual, identified by the investigation as § 87(2)(b) did not have his hands visible. PO Kambouris briefly spoke with PO Estevez and PO Einhorn regarding whether to approach the vehicle, and he decided to approach the vehicle to determine what the individual

was doing. The officers parked, and approached § 87(2)(b)'s vehicle. The officers did not engage their vehicle's police lights or sirens. PO Kambouris approached the driver's side of the vehicle. As he approached, § 87(2)(b) rolled down his window. When § 87(2)(b) rolled down his window, PO Kambouris continued to walk forward until he stood next to the front driver's side seat. As he stood several feet away, with § 87(2)(b)'s window rolled down, he smelled marijuana, and observed marijuana on § 87(2)(b)'s thigh. PO Kambouris then asked for § 87(2)(b)'s identification (BR05).

NYPD Patrol Guide Procedure 212-11 states that police officers can approach civilians to request information if they have an objective credible reason to do so, based on more than a hunch or whim. This procedure also states that a stop is any encounter between a civilian and a uniform member of service in which a reasonable person would not feel free to disregard the officer and walk away. A stop is justified by reasonable suspicion on behalf of a police officer that under the circumstances particular criminal behavior is at hand (BR09).

People v. Debour, 40 N.Y.2d 210 establishes four levels for street encounters. A level 1 encounter requires a police officer to have an objective, credible reason to approach an individual to request information. In a level 1 encounter, an officer can approach a stopped vehicle to request information, as affirmed in People v. Harrison, 57 N.Y.2d 470 (BR12, BR13).

PO Kambouris stated that he had been informed of an ongoing crime condition in his precinct regarding vehicle thefts, and he observed § 87(2)(b) in a position inside his vehicle that he believed could be related to a possible attempt to steal the vehicle. PO Kambouris stated that he approached § 87(2)(b)'s vehicle to obtain more information regarding § 87(2)(b)'s activity. § 87(2)(g) § 87(2)(b), § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

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§ 87(2)(b)

Allegation (D) Abuse of Authority: Police Officer Manolis Kambouris frisked § 87(2)(b)

§ 87(2)(b) :

Allegation (E) Abuse of Authority: Police Officer Marleny Estevez searched a vehicle in which § 87(2)(b) was an occupant.

Allegation (F) Abuse of Authority: Police Officer Adam Einhorn searched a vehicle in which § 87(2)(b) was an occupant.

It is undisputed that PO Einhorn and PO Estevez searched § 87(2)(b)'s vehicle, and that PO Kambouris patted down § 87(2)(b)'s pockets.

As stated above, § 87(2)(b) testified his rolled marijuana cigarette was located in a backpack, possibly in the back seat. § 87(2)(b) also stated that his vehicle did not smell like marijuana (BR01).

PO Kambouris testified he smelled marijuana when § 87(2)(b) rolled down his window, and observed loose marijuana on § 87(2)(b)'s thigh as he stood by the driver's side window. He ordered § 87(2)(b) to step out of the vehicle after PO Einhorn informed PO Kambouris he had observed a knife in the center console. After § 87(2)(b) stepped out of the vehicle, PO Kambouris patted down § 87(2)(b)'s jacket pockets and pants pockets. PO Kambouris did

not recover any additional contraband when he patted § 87(2)(b) down. He stated that PO Einhorn searched the vehicle due to the presence of the odor and physically observed marijuana, as well as the recovery of a switch-blade knife from the vehicle. He stated PO Einhorn did not recover any additional marijuana or other contraband from the vehicle (BR05).

PO Einhorn's body worn camera footage shows him searching § 87(2)(b)'s vehicle. PO Einhorn first enters the vehicle after observing a knife. PO Einhorn extends the blade of the knife by pushing a button on the side of the knife. PO Einhorn later recovers marijuana from the center console (BR10).

PO Kambouris' body worn camera footage depicts him stopping his vehicle and approaching § 87(2)(b)'s vehicle. § 87(2)(b)'s windows are rolled down as PO Kambouris approaches the vehicle. PO Einhorn informs PO Kambouris that he observes a knife in the center console. PO Kambouris then instructs § 87(2)(b) to step out of the vehicle. PO Kambouris places his hands on the outside of § 87(2)(b)'s clothing, then instructs § 87(2)(b) to proceed to the rear of the vehicle. (BR11).

In People v. Belton, 55 N.Y. 2d 49, the court held that in an instance where a person is arrested and there is a valid reason to believe that a car may contain evidence related to the crime for which the occupant was arrested or that a weapon may be discovered, officers may contemporaneously search the vehicle (BR08). In People v. Galak, 81 N.Y.2d 463, the court held that evidence discovered during a stop can contribute to a probable cause to conduct a search (BR15).

§ 87(2)(b), § 87(2)(g)
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Civilian and Officer CCRB Histories

- This is the first complaint filed by § 87(2)(b) with the CCRB (BR04).
- PO Kambouris has been a member of service for three years, and has been the subject of five CCRB complaints with thirteen total charges.
 - CCRB 201808680 involved one substantiated charge of discourtesy, for which the Board recommended he receive Command Discipline A.
- PO Estevez has been a member of service for two years, and has been the subject of two CCRB complaints with three total charges.
 - In CCRB 201703145, PO Estevez was cited for other misconduct for making a false official statement.
- PO Einhorn has been a member of service for two years, has not been the subject of any other CCRB allegations.

Mediation, Civil and Criminal Histories

- This case was referred to Alternative Dispute Resolution on February 26, 2019. On June 3, 2019, this case returned for investigation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
- On July 17, 2019, a FOIL request was sent to the New York City Office of the Comptroller regarding all notices of claim filed regarding this case. On July 24, 2019, the New York City Office of the Comptroller responded to this request, indicating that as of that date, no notices of claim had been filed regarding this incident (BR14).

Squad No.: _____

Investigator: _____

Signature	Print Title & Name	Date
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Squad Leader: _____

Signature	Print Title & Name	Date
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Reviewer: _____

Signature	Print Title & Name	Date
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